

Tanvir Hasan Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 December 2019 · Writ-C No. 41770 of 2019 · **Writ disposed; objections before EE; stay; s.127 liberty.**

HEADNOTE

A writ challenging electricity recovery notices and a citation is disposed of without examining the alleged breach of the U.P. Electricity Supply Code, 2005. The consumer must appear before the Executive Engineer with objections and evidence; a speaking and reasoned final order is to follow; coercive action is stayed for a limited period; any remaining grievance lies in an appeal under Section 127 of the Electricity Act, 2003; and non-appearance automatically revives the citation.

FACTUAL SUMMARY

Tanvir Hasan Khan filed a writ petition in the Allahabad High Court seeking to quash recovery determination notices dated 18 July 2019 and 16 August 2019 and a recovery citation dated 18 November 2019 issued by officers of Madhyanchal Vidyut Vitran Nigam Limited at Badaun. He contended that the electricity department was taking coercive recovery action without affording a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery citation — speaking final order and section 127 appeal

HOLDING

A writ challenging electricity recovery notices and a citation is disposed of, without a merits decision, by directing the consumer to appear before the Executive Engineer with objections and evidence; requiring a speaking and reasoned final order within four weeks; staying coercive action for six weeks or until the objection is decided, whichever is earlier; and leaving the consumer, if still aggrieved by that final order, to appeal under Section 127 of the Electricity Act, 2003. Non-appearance on the date fixed automatically revives the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to recovery notices and a citation, the Court left any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003, without examining the alleged Supply Code breach on merits. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment The Court treated the impugned recovery notices and citation as not themselves the appealable final order, directing the Executive Engineer to pass a speaking final order before Section 127 would be available. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICES AND CITATION VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR WERE ISSUED WITHOUT OPPORTUNITY OF HEARING

The petitioner's principal contention was not examined; the Court took a lenient view and directed a speaking final order on objections. ¶ 1